

****30.01.2025****

****Sanction for Non-Compliance with GDPR****

The National Supervisory Authority for Personal Data Processing completed, in December 2024, an investigation into the operator RED&WHITE; 2022 MANAGEMENT S.A and found a violation of the provisions of Article 28 paragraph (3) letter a) of Regulation (EU) 2016/679.

For the actions committed, the operator was imposed a fine in the amount of 24,854.50 lei (equivalent to 5,000 euros).

The investigation into the sanctioned operator was initiated following aspects reported to the Authority by the operator itself, specifically by an authorized representative of the operator, regarding a possible violation of the provisions of Regulation (EU) 2016/679 in the context of conducting a crowdfunding campaign (microfinancing from individuals).

During the investigation, it was found that the operator, as the majority shareholder of a football team, sent an email regarding the possibility of financing the team by its supporters to a database consisting of a very large number of email addresses of individuals who had purchased tickets for the team's matches. The email was sent through an authorized representative of the operator, and the database used contained personal data (name, surname, email address) of both the club's supporters and other individuals.

In this context, the operator did not provide evidence of the development of documented instructions for its authorized representative regarding the category (supporters) of data subjects in the database used, to whom the authorized representative sent the email, which was designed and approved by the operator, about the financing campaign.

It is important to emphasize that Regulation (EU) 2016/679 provides in Article 28 paragraph (3) that "Processing by a processor on behalf of a controller shall be governed by a contract or other legal act under Union or Member State law that is binding on the processor and that sets out the subject matter and duration of the processing, the nature and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. (...)".

Furthermore, the aforementioned article regulates, among other things, that the respective contract or legal act specifies that the processor processes personal data only on the basis of "documented instructions from the controller."

****Legal and Communication Directorate****

****A.N.S.P.D.C.P.****